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QUESTION 2: Law Proposed by Initiative Petition

Collective Bargaining for CPCS Employees

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY ▶
As required by law, summaries are written by the State Attorney General.

This proposed law would specify that employees of the Committee for Public Counsel Services ("CPCS") are permitted to engage in collective bargaining with their employer. It would also require CPCS, after executing a collective bargaining agreement, to request the appropriation necessary to fund such agreement from the Governor.

WHAT YOUR VOTE WILL DO ▶
As required by law, the statements describing the effect of a "yes" or "no" vote are written jointly by the State Attorney General and the Secretary of the Commonwealth.

A YES VOTE would specify that Committee for Public Counsel Services employees may form a union to collectively bargain with their employer.

A NO VOTE would make no change to the law governing labor relations for Committee for Public Counsel Service employees.

STATEMENT OF FISCAL CONSEQUENCES ▶
As required by law, statements of fiscal consequences are written by the Executive Office of Administration and Finance.

The proposed law may have an impact on state finances. CPCS receives its funding, in part, from state government appropriations. The fiscal impact of the proposed law is difficult to project due to the uncertainty regarding the outcomes of any such collective bargaining by CPCS employees.

ARGUMENTS ▶
As provided by law, the 150-word arguments are written by proponents and opponents of each question, and reflect their opinions. **The Commonwealth of Massachusetts does not endorse these arguments, and does not certify the truth or accuracy of any statement made in these arguments**. The names of the individuals and organizations who wrote each argument, and any written comments by others about each argument, are on file in the Office of the Secretary of the Commonwealth.

IN FAVOR:

A YES vote will give employees of the Massachusetts Committee for Public Counsel Services (CPCS) the right to organize a union and collectively bargain with their employer if they choose to do so.

CPCS employees provide critical support for the constitutional right to counsel and help ensure that Massachusetts residents who cannot afford an attorney have access to legal representation. Yet, unlike other state employees, CPCS employees do not currently have the right to choose whether to organize and collectively bargain over wages, benefits and working conditions.

This ballot question would allow CPCS employees to form a union if they so choose. It simply gives CPCS employees the right to make that choice for themselves.

Vote YES to give CPCS employees the right to choose.

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ARGUMENTS ▶ (continued) ***AGAINST:***

As of the printing of this book, there was no organized group urging a "No" vote on Question 2. The information below has been compiled by the Office of the Secretary of the Commonwealth, in part from arguments presented in the Legislature's Majority Report. The argument below does not reflect the opinions of the Office of the Secretary of the Commonwealth.

Allowing employees of the Committee for Public Counsel Services (CPCS) to collectively bargain creates serious operational and fiscal risks for the judiciary. CPCS operates as an independent judicial branch agency tasked with providing constitutional defense to indigent clients. Introducing collective bargaining into this framework could disrupt existing management and supervisory frameworks, introduce ambiguity into lines of authority, and create operational inefficiencies.

Changes to labor relations policies of this scale could have unintended consequences for the delivery of legal services, particularly if they limit the agency's ability to respond flexibly to fluctuating caseloads, staffing needs, and court demands.

Authored by:
"If no argument is received by the secretary from the principal proponents or opponents of a measure within the time allowed by this section, the secretary shall prepare such argument."
– M.G.L. c. 54 § 54.

QUESTION 2: Majority Report

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on *Initiative Petition 25-22, House 5009, Initiative Petition for a Law Relative to Labor Relations Policies for Committee for Public Counsel Services Employees*, on March 16, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts and proponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5595.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions ("the Committee") voted to recommend that the General Court **take no action** on Initiative Petition 25-22, House 5009, *Initiative Petition for a Law Relative to Labor Relations Policies for Committee for Public Counsel Services Employees* ("the Petition").

In reaching this determination, the Committee conducted a comprehensive review of the proposed measure, including a close examination of its language, structure, and stated intent. The Committee evaluated testimony and documentary evidence presented during the public hearing, along with written submissions received by the Committee. The testimony reflected a broad range of perspectives from stakeholders with direct experience in public defense, labor relations, and public administration.

Proponents of the Petition argued that the proposed changes would enhance employee representation within the Committee for Public Counsel Services (CPCS), promote greater consistency and fairness in workplace policies, and support improved recruitment and retention of attorneys and staff. Several supporters emphasized ongoing challenges related to workload, compensation, and workplace conditions, and contended that expanded labor protections and collective bargaining rights would strengthen the agency's ability to attract and retain qualified personnel, ultimately benefiting the clients CPCS serves.

Experts raised concerns regarding the scope and structure of the proposal. Testimony highlighted the potential for the measure to disrupt existing management and supervisory frameworks, introduce ambiguity into lines of authority, and create operational inefficiencies. Some witnesses also cautioned that changes to labor relations policies of this scale could have unintended consequences for the delivery of legal services, particularly if they limit the agency's ability to respond flexibly to fluctuating caseloads, staffing needs, and court demands.

The Committee notes that the Committee for Public Counsel Services was established to ensure that indigent individuals in the Commonwealth receive legal representation in criminal and certain family law matters, consistent with the Sixth Amendment to the United States Constitution and Article XII of the Declaration of Rights of the Constitution of the Commonwealth. Public defenders and assigned counsel fulfill a critical constitutional function, and their role in safeguarding due process and equal access to justice is fundamental to the integrity of the legal system.

In evaluating the Petition, the Committee carefully considered the testimony of the experts, proponents and members of the public. Based on the issues raised by the testimony, the Committee encourages continued dialogue and collaboration between the petition's proponents and the Committee for Public Counsel Services to address issues highlighted by the testimony. The Committee further encourages CPCS to continue examining and addressing workplace challenges in a manner that strengthens both employee well-being and the agency's core mission of delivering high-quality legal representation to indigent clients.

It is important to note that Article 48 of the Amendments to the Massachusetts Constitution, which governs the initiative petition process, requires the Attorney General to provide initial certification of initiative petitions that meet the specific and limited requirements listed in Article 48. In making a decision on whether to initially certify an initiative petition, the Attorney General does not evaluate a petition's broader constitutionality; her certification decision is limited

QUESTION 2: Majority Report (continued)

only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time.

For these reasons, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-22, House 5009, *Initiative Petition for a Law Relative to Labor Relations Policies for Committee for Public Counsel Services Employees*.

Senators.	**Representatives.**
Cindy F. Friedman	Alice Hanlon Peisch
Brendan P. Crighton	Kate Hogan
Barry R. Finegold	Frank A. Moran
	Michael S. Day
	David T. Vieira

QUESTION 3: Majority Report

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-12, House 5003, *Initiative Petition for a Law to Implement to All-Party State Primaries*, on March 31, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5632.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions ("the Committee") voted to recommend that the General Court **take no action** on Initiative Petition 25-12, House No. 5003, *Initiative Petition for a Law to Implement to All-Party State Primaries* ("the Petition").

In reaching this determination, the Committee conducted a comprehensive review of the proposed measure, including a detailed analysis of its language, structure, and intended effect. The Committee evaluated testimony and supporting evidence presented during the public hearing, as well as additional written submissions from election officials, policy experts, advocacy organizations, and members of the public. This testimony raised administrative and fiscal implications of implementing the proposal at both the state and municipal levels, as well as concerns that all-party primaries may result in vote splitting, reduced party accountability, voter confusion, and strategic voting, often disadvantaging less-funded candidates and producing unpredictable or unrepresentative outcomes.

The Petition would reform the Commonwealth's method for selecting candidates for a general election by removing partisan primaries and instead transitioning to an "all-party" state primary. Under this proposed system, which is also called a "top-two" primary in other jurisdictions that implement a similar structure, candidates for elected office run in a primary election against all of the other candidates for that office, and the candidates who receive the first and second highest number of votes in the primary election are the only candidates to advance to the general election.

The system of a partisan primary election administered by the Commonwealth was implemented in 1911, establishing direct voter nomination of candidates for state offices. This law changed the practice at the time, when each party controlled the method of nominating candidates to represent their party in the general election. The proposed Petition would remove the ability for voters to choose their candidate of choice to represent their preferred party in a general election and would instead ask voters in a primary election to vote for one candidate for that office among all candidates regardless of party affiliation.

The Petition proposes a new system to address the loss of a partisan primary election, whereby candidates for office would be allowed to display their party affiliation on both the primary and general election ballot based on their voter

Full Texts

QUESTION 1: Full Text of Proposed Law

An Act to improve access to public records.

Be it enacted by the People, and by their authority;

SECTION 1. The first paragraph of Clause Twenty-Sixth of Section 7 of Chapter 4 of the General Laws is hereby amended by inserting after the words “chapter 32” the following phrase “or by the general court, or by the office of the governor of the commonwealth,”.

SECTION 2. Said Clause Twenty-Sixth of Section 7 of Chapter 4 of the General Laws is hereby further amended by inserting the following new subparagraphs following subparagraph (v):-

(w) communications between a member of the general court, or such member’s employee, agent, or representative, and any constituent of such member; provided, however, that the communications reasonably relate to a constituent’s request for assistance in obtaining government-provided benefits or services or otherwise interacting with a state or federal agency.

(x) communications, memoranda, drafts or other documents relating to developing policy positions of members of the general court or the governor of the commonwealth.

SECTION 3. The third sentence of the first paragraph of Section 6A of Chapter 66 of the General Laws is hereby amended by striking said third sentence and inserting in place thereof the following:-

For the purposes of this chapter the term “agency” shall mean any entity, other than a municipality, that is identified in clause twenty-sixth of section 7 of chapter 4 as possessing “public records,” as defined therein, including the general court and the office of the governor of the commonwealth.

SECTION 4. Section 18 of Chapter 66 of the General Laws is hereby amended by striking said Section 18 and inserting in place thereof the following:-

Section 18. Declarations, affidavits and other papers filed by claimants in the office of the secretary of veterans’ services or records kept by the secretary for reference by the officials of their office, shall not be considered public records for the purposes of this chapter.

SECTION 5. This act shall take effect on January 1, 2027.

QUESTION 2: Full Text of Proposed Law

An Act relative to labor relations policies for committee for public counsel services employees.

Be it enacted by the People, and by their authority;

SECTION 1: Section 1 of chapter 150E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding to the end of the seventh paragraph, titled “Employer” or “public employer”, the following sentence: “In the case of employees of the committee for public counsel services, employer shall mean the committee for public counsel services or its designee.”

SECTION 2. Section 7 of said chapter 150E of the General Laws, as so appearing, is hereby amended by striking the word “or” before the phrase “the state lottery commission” in line 16 and adding the following words after that phrase: “or the committee for public counsel services.”

SECTION 3. Said section 7 of said chapter 150E of the General Laws, as so appearing, is hereby amended by striking the word “and” before the words “the state lottery commission” appearing in line 34 and inserting after the word “commission” in line 35 the following words: “and committee for public counsel services.”

QUESTION 3: Full Text of Proposed Law

An Act to implement all-party state primaries.

Be it enacted by the People, and by their authority;

SECTION 1. Section 1 of Chapter 50 of the General Laws is hereby amended by amending the definition of “Political party” therein by inserting after the phrase “to a party which at” in the first sentence thereof the phrase “the latest state primary held prior to”, and by striking the second sentence thereof in its entirety.

SECTION 2. Chapter 50 of the General laws is hereby amended by inserting after Section 2 the following Section 2A:-

Section 2A. In state primaries held in accordance with sections forty-one to fifty-three A, inclusive, of chapter fifty-three, the two persons receiving the highest number of votes for an office shall be deemed nominated for election to such office and shall be the only persons whose names shall be printed on the ballot for such office at the next proceeding state election.